MEADOW POINTE II COMMUNITY DEVELOPMENT DISTRICT

AMENITY POLICIES, PROCEDURES, AND RATES

Adopted October 7, 2026[1]

[1] LAW IMPLEMENTED: SS. 190.011, 190.035, FLA. STAT. (2025); In accordance with Chapter 190 of the Florida Statutes, and on April 15, 2026, and July 1, 2026, September 2, 2026, and October 7, 2026, at duly noticed public meetings and after duly noticed public hearings, the Board of Supervisors of the Meadow Pointe II Community Development District adopted the following rules, policies and rates governing the operation of the District's facilities and services.

DEFINITIONS

"Amenities" or "Amenity Facilities"– means the properties and areas owned by the District and intended for recreational use and shall include, but not specifically be limited to the clubhouse, swimming pool, pool deck, playground, dog park, and lakes together with their appurtenant facilities and areas.

"Amenity Policies" or "Policies" and "Amenity Rates" – means these Amenity Policies, Procedures, and Rates of the Meadow Pointe II Community Development District, as amended from time to time. The Board of Supervisors reserves the right to amend or modify these Policies, as necessary and convenient, in their sole and absolute discretion, and will notify Patrons of any changes. Patrons may obtain the currently effective Policies from the District Manager's Office. The Board of Supervisors and District Staff shall have full authority to enforce the Amenity Policies.

"Amenity Manager" – means the Operations Manager or that person so designated by the District's Board of Supervisors, including their employees.

"Amenity Rates" – means those rates and fees established by the District Board of Supervisors as provided in **Exhibit A** attached hereto.

"Access Card" – means an electronic Access Card issued by the District Manager or Amenity Manager to each Patron (as defined herein) to access the Amenity Facilities.

"Board of Supervisors" or "Board" – means the Board of Supervisors of the District.

"District" – means the Meadow Pointe II Community Development District.

"District Manager" – means that person or professional management company so designated by the District's Board of Supervisors, including their employees.

"District Staff" – means the professional management company with which the District has contracted to provide management services to the District, including but not limited to: an Amenity Manager, Field Manager, Pool Attendants, Security Guards, District Manager, and District Counsel.

"Guest" – means any person or persons, other than a Patron, who are expressly authorized by the District to use the Amenities or invited for a specific time period and purpose by a Patron to use the Amenities.

"Homeowners Association" or "HOA" or "POA" – means an entity or entities, including its/their employees and agents, which may have jurisdiction over lands located within the District, either now or in the future, which may exist to aid in the enforcement of deed restrictions and covenants applicable to lands within the District.

"Household" – means a residential unit or a group of individuals residing within a Patron's home. This does not include visiting friends, guests, relatives or extended family not permanently residing in the home. Upon the District's request, proof of residency may be required by driver's license or state or federal issued form of identification, including a signed affidavit of residency.

"Lakes" or "Ponds" – shall mean those water management and control facilities within the District, including but not limited to stormwater management facilities, lakes, and ponds.

"Non-Resident" – means any person who does not own property within the District.

"Non-Resident Patron" – means any person or Household not owning property in the District who paid the Annual User Fee to the District for use of all Amenity Facilities (excluding the Fitness Center).

"Non-Resident User Fee" or "Annual User Fee" – means the fee established by the District for any person that is not a Resident and wishes to become a Non-Resident Patron. The amount of the Annual User Fee is set forth herein, and that amount is subject to change based on Board action. Payment of the Annual User Fee entitles the person and their Household full access to the Amenity Facilities, excluding the Fitness Center.

"Patron" – means Owners, Residents, Non-Resident Patrons, Limited Patrons, and Renters who have been assigned Resident's Rights and Privileges through execution of the "Assignment of Amenity Rights and Privileges" form.

"Renter" – means a tenant, occupant or an individual maintaining his or her residence in a home located within the District pursuant to a valid rental or lease agreement with a minimum length of thirty (30) days. Proof of valid rental or lease agreement shall be required. Renters shall have Patron rights only upon execution of the "Assignment of Amenity Rights and Privileges" form.

"Resident" – means any person or Household owning property within the District.

The words "hereof," "herein," "hereto," "hereby," "hereinafter" and "hereunder" and variations thereof refer to the entire Amenity Policies and Rates.

All words, terms and defined terms herein importing the singular number shall, where the context requires, import the plural number and vice versa.

AMENITIES ACCESS AND USAGE

(1) **General.** Only Patrons have the right to use the Amenities; provided, however, that certain community programming events may be available to the general public where permitted by the District, and subject to payment of any applicable fees and satisfaction of any other applicable requirements, including adherence to these Amenity Policies and execution of waivers and hold harmless agreements, as may be applicable.

(2) **Use at your Own Risk. ALL PERSONS USING THE AMENITIES DO SO AT THEIR OWN RISK AND AGREE TO ABIDE BY THE AMENITY POLICIES WHICH MAY BE AMENDED FROM TIME TO TIME IN THE DISTRICT'S SOLE DISCRETION. ALL PERSONS USING THE AMENITIES ARE DEEMED TO HAVE READ AND OBTAINED A COPY, IF DESIRED, OF THE MOST RECENT POLICIES. THE DISTRICT SHALL ASSUME NO RESPONSIBILITY AND SHALL NOT BE LIABLE FOR ANY INCIDENTS, ACCIDENTS, PERSONAL INJURY, DEATH, DAMAGE TO OR LOSS OF PROPERTY ARISING FROM THE USE OF THE AMENITIES OR FROM THE ACTS, OMISSIONS OR NEGLIGENCE OF OTHER PERSONS USING THE AMENITIES. THE DISTRICT DOES NOT PROVIDE SECURITY SERVICES OR SUPERVISION WITH RESPECT TO THE USE OF THE AMENITIES, AND THERE ARE INHERENT RISKS IN THE USE OF THE AMENITIES – E.G., USE MAY RESULT IN SERIOUS BODILY INJURY OR EVEN DEATH. PATRONS ARE RESPONSIBLE FOR THEIR ACTIONS AND ACTIONS OF THEIR GUESTS. PARENTS AND LEGAL GUARDIANS ARE RESPONSIBLE FOR THEIR MINOR CHILDREN WHO USE THE AMENITIES AND PATRONS WILL BE HELD ACCOUNTABLE FOR THEIR ACTIONS. VIOLATION OF ONE OR MORE OF THE POLICIES STATED HEREIN MAY RESULT IN WARNINGS, SUSPENSION OR TERMINATION OF AMENITY PRIVILEGES. THE DISTRICT WILL PROSECUTE ILLEGAL ACTIVITY TO THE FULL FORCE OF THE LAW.**

(3) **Resident Access and Usage.** Residents are permitted to access and use the Amenities in accordance with the Policies set forth herein and are not responsible for paying the Non-Resident User Fee set forth herein. In order to fund the operation, maintenance and preservation of the facilities, projects and services of the District, the District levies operation and maintenance special assessments ("O&M Assessments") payable

by property owners within the District, in accordance with the District's annual budget and assessment resolutions adopted each fiscal year and may additionally levy debt service assessments payable by property owners to repay debt used to finance public improvements. Residents shall not be entitled to a refund of any O&M Assessments or debt service special assessments due to closure of the Amenities or suspension of that Resident's privileges to use the Amenities. Residents must complete the "Amenity Access Registration Form" prior to access or use of the Amenities, attached hereto as **Exhibit B**, and each Household shall receive one (1) Access Card for each Resident aged fourteen (14) years and older upon completion of the required forms.

(4) **Non-Resident Patron Access and Usage.** A Non-Resident Patron must pay the Annual Non-Resident User Fee to have the right to use the Amenities for one full year, which year begins from the date of receipt of payment to the District. This Non-Resident User Fee must be paid in full before the Non-Resident may use the Amenities. Each subsequent Annual Non-Resident User Fee shall be paid in full on the anniversary date of application. Annual Non-Resident User Fees may be renewed no more than thirty (30) days in advance of the date of expiration and for no more than one calendar year. Multi-year memberships are not available. The Annual Non-Resident User Fee is nonrefundable and nontransferable. Non-Resident Patrons must complete the Amenity Facilities Access Registration Form prior to access or use of the Amenities.

(5) **Guest Access and Usage.** Each Household is entitled to bring five (5) persons as Guests to the Amenities at one time. District Staff shall be authorized to verify and enforce the authorized number of Guests. A Patron must always accompany its Guests during its Guests' use of the Amenities and in every event is responsible for all actions, omissions and negligence of such Guests, including Guests' adherence or failure to adhere, to the Amenity Policies. Violation of these Amenity Policies by a Guest may result in suspension or termination of the Patron's Amenity privileges. ***Exceeding the authorized number of Guests specified above shall be grounds for suspension or termination of a Household's access and usage privileges.***

(6) **Renter's Privileges.** Residents who rent or lease residential units in the District shall have the right to designate the Renter of a residential unit as the beneficial users of the Resident's privileges to use the Amenities, subject to requirements stated herein.

Resident shall provide a written notice to the District Manager and Amenity Manager on the "Assignment of Amenity Rights and Privileges" form attached hereto as **Exhibit C**, designating and identifying the Renter who shall hold the beneficial usage rights, submitting with such notice the Renter's proof of residency (i.e., a copy of the lease agreement). Renter's Access Card shall expire at the end of the lease term and may be reactivated upon provision of proof of residency. If the lease agreement or other proof of residency is terminated before the stated term within such document, then the Resident must send notice to the District Manager and Amenity Manager of said termination and effective date.

The lease agreement or other proof of residency of the Renter must be for a term of not less than thirty (30) days. A Resident may submit only one (1) "Assignment of Amenity Rights and Privileges" form in any thirty (30) day period, measured from the date the most recent Assignment of Amenity Rights and Privileges form was submitted to and approved by the District. If the Renter's lease or other residency is terminated or ends for any reason before the end of that thirty (30) day period, the Resident may not submit a new Assignment of Amenity Rights and Privileges form, or otherwise assign the Resident's amenity rights and privileges to any other person, until the full thirty (30) day period has expired. Upon such early termination with notice to the District as stated above, the Resident's amenity rights and privileges shall revert to the Resident for the remainder of such period.

Renter who is designated by a Resident as the beneficial user of the Resident's rights to use the Amenities shall be entitled to the same rights and privileges to use the Amenities as the Resident, subject to all Amenity Policies. During the period when a Renter is designated as the beneficial user, the Resident shall not be entitled to use the Amenities. In other words, Renters and Residents cannot simultaneously hold Amenity privileges associated with that residential unit. Residents may retain their Amenities rights in lieu of granting them to their Renters.

Residents shall be responsible for all charges incurred by their Renters which remain unpaid after the customary billing and collection procedures established by the District. Residents are responsible for the deportment of their respective Renter, including the Renter's adherence to the Amenity Policies.

(7) **Access Cards.** One complimentary Access Card will be issued to each Resident aged fourteen (14) years and older in each Household upon completion of the required registration form after closing upon property within the District, or upon approval of Non-Resident Patron application and payment of applicable Annual User Fee, or upon verification and approval of Renter designation. Proof of property ownership may be required annually. All Patrons must use their Access Card issued to their Household for entrance to the Amenities.

Each Resident of each Household will be authorized one (1) initial Access Card free of charge. Replacement Access Cards may be purchased in accordance with the Rates then in effect.

Patrons must scan their Access Cards in the card reader to gain access to the Amenities. This Access Card system provides a security and safety measure for Patrons and protects the Amenities from non-Patron entry. Under no circumstances shall a Patron provide their Access Card to another person, whether Patron or non-Patron, to allow access to the Amenities, and under no circumstances shall a Patron intentionally leave doors, gates, or other entrance barriers open to allow entry by non-Patrons.

Access Cards are the property of the District and are non-transferable except in accordance with the District's Amenity Policies. All lost or stolen cards must be reported immediately to District Staff. Fees shall apply to replace any lost or stolen cards. Patrons are responsible for notifying the District immediately if an Access Card is lost or stolen. The lost or stolen Access Card will be immediately deactivated. Patrons are also responsible for notifying the District when they sell their home. Each Patron shall be responsible for the actions of those individuals using the Patron's Access Card unless said Access Card is reported as being lost or stolen.

GENERAL AMENITY POLICIES

(1) **Hours of Operation.** All hours of operation of the Amenities will be established and published by the District on its website and/or posted at the applicable facility. The District may restrict access or close some or all of the Amenities due to inclement weather, for purposes of providing a community activity, for making improvements, for conducting maintenance, or for other purposes as circumstances may arise. Any programs or activities of the District may have priority over other users of the Amenities. Unless otherwise posted on the website or at the applicable facility, all outdoor Amenities are open only from dawn until dusk (unless herein otherwise noted). The specific, current hours of operation for several of the Facilities, which may be amended from time to time and which may be subject to closure for holidays and other special circumstances, are as published on the District's website and/or as posted at the applicable facility. No Patron is allowed in the service areas of the Amenities.

(2) **General Usage Guidelines.** The following guidelines supplement specific provisions of the Amenity Policies and are generally applicable and shall govern the access and use of the Amenities:

(a) **Registration and Access Cards.** Each Patron must scan in an Access Card in order to access the Amenities and must have his or her assigned Access Card in their possession and available for inspection upon District Staff's request. Access Cards are only to be used by the Patron to whom they are issued. In the case of Guests, Guests should be accompanied by a Patron possessing a valid Access Card at all times or such Guest will be subject to revocation of right to access the Amenities by District Staff.

(b) **Attire.** With the exception of the pool and wet areas where bathing suits are permitted, Patrons and Guests must be properly attired with shirts and shoes to use the Amenities for its intended use. Bathing suits and wet feet are not allowed indoors with the exception of the bathrooms appurtenant to the pool area.

(c) **Food and Drink.** Food and drink will be limited to designated areas only. No glass containers of any type are permitted at any of the Amenities. All persons using any of the Amenities must keep the area clean by properly disposing of trash or debris.

(d) **Parking and Vehicles.** Vehicles must be parked in designated areas. Vehicles should not be parked on grass lawns, pond banks, roadsides, or in any way which blocks the normal flow of traffic. During special events, alternative parking arrangements may be authorized but only as directed by District Staff. Off-road bikes/vehicles (including ATVs), golf carts and other electric vehicles are prohibited on all property owned, maintained and operated by the District or at any of the Amenities within District unless they are owned by the District.

(e) **Fireworks / Flames.** Fireworks or open flames of any kind are not permitted anywhere on District owned property or adjacent areas.

(f) **Skateboards, Etc.** Bicycles, scooters, skateboards or rollerblades are not permitted on Amenity property which includes, but is not limited to, the amenity parking lot, pool area, playground, and sidewalks surrounding these areas.

(g) **Grills.** Personal barbeque grills are not permitted at the Amenities or on any other District owned property.

(h) **Firearms.** The possession and use of firearms shall be in strict accordance with Florida law. Among other prohibitions, no firearms may be carried to any meeting of the District's Board of Supervisors.

(i) **Equipment.** All District equipment, furniture and other tangible property must be returned in good condition after use. Patrons and Guests are encouraged to notify District Staff if such items need repair, maintenance or cleaning.

(j) **Littering.** Patrons and Guests are responsible for cleaning up after themselves and helping to keep the Amenities clean at all times.

(k) **Bounce Houses and Other Structures.** The installation and use of bounce houses and similar apparatus is prohibited on District property. No exceptions will be made.

(l) **Excessive Noise.** Excessive noise that will disturb other Patrons and Guests is not permitted, including but not limited to use of cellular phones and speakers of any kind that amplify sound.

(m) **Lost or Stolen Property.** The District is not responsible for lost or stolen items. The Amenity Manager is not permitted to hold valuables or bags for Patrons or Guests. All found items should be turned into the Amenity Manager for storage in the lost and found, if one is available. Items will be stored in the lost and found for two (2) weeks after which District Staff shall dispose of such items in such manner as determined in its sole discretion; provided, however, that District Staff shall not be permitted to keep such items personally or to give such items to a Patron not otherwise claiming ownership.

(n) **Trespassing / Loitering.** There is no trespassing or loitering allowed at the Amenities.

(o) **Compliance with Laws and District Rules and Policies.** All Patrons and Guests shall abide by and comply with all applicable federal, state and local laws, rules, regulations, ordinances and policies, as well as all District Policies, while present at or utilizing the Amenities, and shall ensure that any minor for whom they are responsible also complies with the same. Failure to abide by any of the foregoing may be a basis for suspension or termination of the Patron's privileges to use or access the Facilities.

(p) **Courtesy.** Patrons and Guests shall treat all District Staff and their designees, other Patrons and Guests with courtesy and respect. Disrespectful or abusive treatment of District Staff or District contractors may result in suspension or termination of Facility access and usage privileges. If District Staff requests that a Patron or Guest leave the Amenity Facilities due to failure to comply with these rules and policies, or due to a threat to the health, safety, or welfare, failure to comply

may result in immediate suspension or termination of Amenity privileges.

(q) **Profanity / Obscenity.** Loud, profane, abusive, or obscene language or behavior is prohibited.

(r) **Emergencies.** In the event of an injury or other emergency, please contact 911 and alert District Staff immediately.

(s) **False Alarms.** Any Patron improperly attempting to enter the Amenity Facilities outside of regular operating hours or without the use of a valid Access Card and who thereby causes a security alert will be responsible for the full amount of any fee charged to the District in connection with such security alert and related response efforts.

(t) **Outside Vendors / Commercial Activity.** Outside vendors and commercial activity are prohibited on District property unless they are invited by the District as part of a District event or program or as authorized by the District in connection with a rental of the Amenity Facilities. The District may, in its sole discretion, authorize exceptions to these Facility Policies as needed to facilitate District services performed or provided by District vendors.

(u) **Organized Activities.** Any organized activities taking place at the Amenity Center must first be approved by the District. This includes, but is not limited to, fitness instruction, special events, etc.

SMOKING, DRUGS AND ALCOHOL

Smoking, including using any paraphernalia designed to consume tobacco or other substances such as vaping and electric and non-electronic devices, is prohibited anywhere inside the Amenity Facilities, including any building, or enclosed or fenced area to the maximum extent of the prohibitions set forth in Florida law, including the Florida Clean Indoor Air Act or other subsequent legislation. Additionally, to the extent not prohibited by law, smoking is discouraged in all other areas of the Amenities and on District owned property. All waste must be disposed of in the appropriate receptacles. Any violation of this policy shall be reported to District Staff.

Possession, use and/or consumption of illegal drugs or alcoholic beverages is prohibited at the Amenities and on all other District owned property absent express permission by the District subject to the provisions herein. Any person that appears to be under the influence of drugs or alcohol will be asked to leave the Amenities. Violation of this policy may result in suspension or termination of Amenity access and usage privileges, and illegal drug use may be punished to the maximum extent allowed by law.

SERVICE ANIMAL POLICY

A Service Animal must be kept under the control of its handler by leash or harness, unless doing so interferes with the Service Animal's work or tasks or the individual's disability prevents doing so. The District may remove the Service Animal only under the following conditions:

- If the Service Animal is out of control and the handler does not take effective measures to control it;
- If the Service Animal is not housebroken; or,
- If the Service Animal's behavior poses a direct threat to the health and safety of others.

The District is prohibited from asking about the nature or extent of an individual's disability to determine whether an animal is a Service Animal or pet. However, the District may ask whether an animal is a Service Animal required because of a disability and what work or tasks the animal has been trained to perform.

SWIMMING POOL POLICIES

(1) **Operating Hours.** Swimming is permitted only during designated hours, which is 9:00 a.m. until thirty (30) minutes before dusk.

(2) **Swim at Your Own Risk.** Lifeguards are not on duty. All persons using the pool do so at their own risk and must abide by all swimming pool rules and policies.

(3) **Supervision of Minors.** Non-swimming children should have adult supervision with them and within arm's reach at all times. Persons unable to swim safely and/or without assistance must be accompanied by a capable adult at all times in and around the pool. All children, regardless of age, using inflatable armbands (i.e., water wings) or any approved Coast Guard flotation device MUST be supervised by an adult who is in the water and within arm's length of the child. Even proficient swimmers could find themselves at risk, the District recommends Patrons and Guests not swim alone.

(4) **Aquatic Toys and Recreational Equipment.** Water wings and swim rings used by small children, under the direct supervision of an adult as specified in Section (3) immediately above. Inflatable rafts, balls, pool floats and other toys are permitted at the discretion of District Staff.

(5) **Prevention of Disease.** All swimmers must shower before initially entering the pool. Persons with open cuts, wounds, sores or blisters, nasal or ear discharge, or who are experiencing diarrhea may not use the pool. No person should use the pool with or suspected of having a communicable disease which could be transmitted through the use of the pool.

(6) **Attire.** Appropriate swimming attire (swimsuits) must be worn at all times.

(7) **Conduct.** No cursing, offensive language or gestures, threatening language or behavior, or lewd behavior is allowed.

(8) **Horseplay.** No jumping, pushing, running, wrestling, excessive splashing, walking in pool gutters, sitting or standing on shoulders, spitting water, or other horseplay is allowed in the pool or on the pool deck area.

(9) **Diving.** Diving is strictly prohibited at the pool. Back dives, back flips, back jumps, cannonball splashing or other dangerous actions are prohibited.

(10) **Music / Audio.** Radios and other audio devices are prohibited; other than when used with headphones.

(11) **Weather.** The pool and pool area will be closed during electrical storms or when rain makes it difficult to see any part of the pool or pool bottom clearly. The District uses a lightning detection system that monitors for lightning within a ten (10) mile radius of the Amenities. Because lightning may not always be visible or audible, this system serves as an additional indicator of unsafe conditions. The pool will be closed at the first sound of thunder, sighting of lightning, or activation of the lightning detection system, and will remain closed for thirty (30) minutes after the last sighting, sound of thunder, or system alert. Everyone must leave the pool deck immediately upon hearing thunder, sighting lightning, or notification that the lightning detection system has been activated. This policy shall be enforced in staffed and unmonitored and unstaffed Amenities.

(12) **Pool Furniture; Reservation of Tables or Chairs.** Tables and chairs may not be removed from the pool deck. Tables or chairs on the deck area may not be reserved by placing towels or personal belongings on them except temporarily to allow the Patron using them to enter the pool or use the restroom facilities.

(13) **Entrances.** Pool entrances must be kept clear at all times.

(14) **Pollution.** No one shall pollute the pool. Anyone who does pollute the pool is liable for any costs incurred in treating and reopening the pool.

(15) **Pets.** Pets, with the exception of service animals, as defined above, are not permitted on the pool deck area inside the pool gates at any time.

(16) **Swim Diapers.** Children under the age of three (3) years, and anyone who is not reliably toilet trained, must wear rubber lined swim diapers, as well as a swimsuit over the swim diaper, to reduce the health risks associated with human waste contaminating the swimming pool and deck area. If contamination occurs, the pool will be shocked and closed for a period of at least twelve (12) hours. Persons not abiding by this policy shall be responsible for any costs incurred in treating and reopening the pool.

(17) **Staff Only.** Only authorized staff members and contractors are allowed in the service and chemical storage areas. Only authorized staff members and contractors may operate pool equipment or use pool chemicals.

(18) **Pool Closure.** In addition to local municipal, county and the State of Florida health code standards for pools and pool facilities, and as noted above, the pool will be closed for the following reasons:

(a) During severe weather conditions (heavy rain, lightning and thunder) and warnings, especially when visibility to the pool bottom is compromised (deck also closed).

(b) For thirty (30) minutes following the last occurrence of thunder or lightning (deck also closed).

(c) Operational and mechanical treatments or difficulties affecting pool water quality.

(d) For a reasonable period following any mishap that resulted in contamination of pool water.

(e) Any other reason deemed to be in the best interests of the District as determined by District Staff.

(19) **Containers.** No glass, breakable items, or alcoholic beverages are permitted in the pool area. No food or chewing gum is allowed in the pool.

(20) **No Private Rentals.** The pool area is not available for rental for private events. All pool rules and limitations on authorized numbers of Guests remain in full affect at all times.

(21) **Programming.** District Staff reserves the right to authorize all programs and activities, including with regard to the number of Guest participants, equipment, supplies, usage, etc., conducted at the pool, including swim lessons, aquatic/recreational programs and pool parties. Any organized activities taking place at the Amenity Center must first be approved by the District in writing.

PLAYGROUND POLICIES

(1) **Use at Own Risk.** Patrons may use the playgrounds at their own risk and must comply with all posted signage.

(2) **Hours of Operation.** Unless otherwise posted, all playground hours are from 9:00 a.m. to dusk.

(3) **Supervision of Children.** Supervision by an adult eighteen (18) years or older is required for children twelve (12) years of age or under. The supervising adult must remain in the playground area, and children must always remain within the line of sight of the supervising adult. All children are expected to play cooperatively with other children.

(4) **Shoes.** Proper footwear is required and no loose clothing, especially with strings, should be worn.

(5) **Mulch.** The mulch material is necessary for reducing fall impact and for good drainage. It is not to be picked up, thrown, or kicked for any reason.

(6) **Food & Drink.** No food, drinks or gum are permitted on the playground, other than such water in non-breakable containers as may be necessary for reasonable hydration. Patrons and Guests are responsible for clean-up of any food or drinks brought by them to the playground.

(7) **Glass.** No glass containers or objects are permitted. Patrons should notify District Staff if broken glass is observed at the playground or parks.

PARK POLICIES

(1) **Use at Own Risk.** Patrons may use the parks at their own risk and must comply with all posted signage.

(2) **Hours of Operation.** Unless otherwise posted, all park hours are from 9:00 a.m. to dusk.

(3) **Supervision of Children.** Supervision by an adult eighteen (18) years or older is required for children twelve (12) years of age or under. The supervising adult must remain in the park, and children must always remain within the line of sight of the supervising adult. All children are expected to play cooperatively with other children.

(4) **Shoes.** Proper footwear is required and no loose clothing, especially with strings, should be worn.

(5) **Food & Drink.** Food and drinks are permitted at the parks. Patrons and Guests are responsible for clean-up of any food or drinks brought by them to the parks.

(6) **Glass.** No glass containers or objects are permitted. Patrons should notify District Staff if broken glass is observed at the parks.

MULIT-PURPOSE FIELD POLICIES

(1) **Use at Own Risk.** Patrons may use the multi-purpose field at their own risk and must comply with all posted signage.

(2) **Hours of Operation.** Unless otherwise posted, all multi-purpose field hours are from 9:00 a.m. to dusk.

(3) **Supervision of Children.** Supervision by an adult eighteen (18) years or older is required for children fifteen (15) years of age or under. The supervising adult must remain in the field area, and children must always remain within the line of sight of the supervising adult. All children are expected to play cooperatively with other children.

(4) **Shoes.** Proper footwear is required and no loose clothing, especially with strings, should be worn.

(5) **Food & Drink.** Food and drinks are permitted at the picnic tables located on or near the multi-purpose field. Patrons and Guests are responsible for clean-up of any food or drinks brought by them to the multi-purpose field.

(6) **Glass.** No glass containers or objects are permitted. Patrons should notify District Staff if broken glass is observed at the multi-purpose field.

BASKETBALL COURTS POLICIES

(1) **Use at Own Risk.** Patrons may use the basketball courts at their own risk and must comply with all posted signage.

(2) **Hours of Operation.** Unless otherwise posted, all basketball courts hours are from 7:30 a.m. to 9:00 p.m. Monday through Friday, and 8:00 a.m. until 9:00 p.m. Saturday and Sunday.

(3) **Supervision of Children.** Supervision by an adult eighteen (18) years or older is required for children fourteen (14) years of age or under. The supervising adult must remain in the basketball court area, and children must always remain within the line of sight of the supervising adult.

(4) **Attire and Shoes.** Appropriate clothing and proper footwear must be worn at all times.

(5) **Food & Drink.** No food, drinks or gum are permitted on the basketball courts, other than such water in non-breakable containers as may be necessary for reasonable hydration. Patrons and Guests are responsible for clean-up of any food or drinks brought by them to the basketball courts.

(6) **Glass.** No glass containers or objects are permitted. Patrons should notify District Staff if broken glass is observed at the parks.

(7) **No Reservations.** The basketball courts may not be reserved and are available on a first come first serve basis unless otherwise programmed by the District. It is recommended that persons desiring to use the basketball courts check with the District Staff to verify availability in case they are reserved for programs or closed for maintenance.

TENNIS AND PICKLEBALL COURTS POLICIES

(1) **Use at Own Risk.** Patrons may use the tennis and pickleball courts at their own risk and must comply with all posted signage.

(2) **Hours of Operation.** Unless otherwise posted, all tennis and pickleball courts hours are from 7:30 a.m. to 9:00 p.m.

(3) **Usage of Courts.**

(a) Courts 1a and 1b and the multi-purpose area are designated for pickleball only.

(b) Courts 2 and 3 are designated for tennis only.

(4) **Supervision of Children.** Supervision by an adult eighteen (18) years or older is required for children fourteen (14) years of age or under. Children must always remain within the line of sight of the supervising adult.

(5) **Attire and Shoes.** Appropriate clothing and proper footwear must be worn at all times.

(6) **Etiquette.** Proper court etiquette should be observed at all times.

(7) **Food & Drink.** No food, drinks or gum are permitted on the tennis and pickleball courts, other than such water in non-breakable containers as may be necessary for reasonable hydration.

(8) **Glass.** No glass containers or objects are permitted. Patrons should notify District Staff if broken glass is observed at the tennis and pickleball courts.

(9) **Littering.** Patrons, Members, and Guests are responsible for cleaning up after themselves and helping to keep the Amenities clean at all times.

(10) **Pets.** Pets, with the exception of service animals, are not permitted on the tennis and pickleball courts at any time.

(11) **Reservations.** The tennis and pickleball courts must be reserved for us.

(a) Reservations can be made through the Pickle Planner app, which can be downloaded or found on the District website https://www.meadowpointe2cdd.org/

(b) All reservations are subject to approval by the Operations Manager or his/her designee.

(c) If a user does not arrive within fifteen (15) minutes of their reserved start time, the reservation will be forfeited.

(12) **Violations.** If a user does not appear for their reserved time, the following violations, as defined in the Disciplinary Rule, may occur:

(a) First no-show: First Violation

(b) Third no-show: Second Violation

(c) Sixth no-show: Third Violation

(d) Ninth no-show: Fourth Violation

FITNESS CENTER POLICIES

(1) **Use at Own Risk.** Owners, Residents, and Renters may use the fitness center at their own risk and must comply with all posted signage.

(2) **Hours of Operation.** Unless otherwise posted, the fitness center hours are 7:00 a.m. until 8:45 p.m. Monday through Friday, and 8:00 a.m. until 8:45 p.m. Saturday and Sunday.

(3) **Eligible Users.** Only Owners, Residents, and Renters are permitted to use the fitness center. No Guests or Non-Resident Patrons are permitted in the fitness center at any time. Prior to use of the fitness center, Patrons must fill out a waiver, attached hereto as **Exhibit E**, and pay the non-refundable fee as listed in the Fee Schedule.

(4) **Supervision of Children.** No one under fifteen (15) years of age is allowed in the fitness center at any time. Patrons aged fifteen (15) to seventeen (17) years of age must be supervised by an adult Patron eighteen (18) years of age or older. The Adult Patron must have the minor Patrons in their line of sight at all times.

(5) **General Policies:**

(a) Everyone is responsible for wiping down fitness equipment after use.

(b) Hand chalk is not permitted.

(c) Personal audio devices (e.g. radios, CD players, MP3 players, Bluetooth speakers, etc.) are not permitted unless they are personal units equipped and used with ear or headphones.

(d) Weights and other fitness equipment may not be removed from the fitness center.

(e) Weights and other moveable fitness equipment (e.g. benches, medicine balls, etc.) must be returned to their proper location after use.

(f) Free weights are not to be dropped and must be placed only on the floor or on equipment made specifically for storage of the weights.

(g) When other Patrons are waiting, the use of cardiovascular equipment should be limited to thirty (30) minutes and breaks should be taken between multiple sets on weight equipment.

(h) Any fitness program operated, established, and run by District Staff may have priority over other users of the fitness center.

(6) **Attire and Shoes.** Appropriate clothing and proper footwear, which encloses the entire foot, must be worn at all times. Appropriate clothing includes t-shirts, tank tops, athletic shorts (no jeans), and/or sweat suits (no swimsuits).

(7) **Food & Drink.** No food or gum are permitted in the fitness center. Water is permitted in non-breakable containers with a screw top or sealed lid.

(8) **Glass.** No glass containers or objects are permitted. Patrons should notify District Staff if broken glass is observed in the fitness center.

(9) **Littering.** Patrons are responsible for cleaning up after themselves and helping to keep the Amenities clean at all times.

(10) **Pets.** Pets, with the exception of service animals, are not permitted in the fitness center at any time.

(11) **Personal Trainers.** Personal trainers are not permitted in the fitness center, unless it is for their own personal use as a Patron.

FACILITY RENTAL POLICIES

Adult Patrons may reserve for rental certain portions of the Amenity Facilities for private events. Designated areas are available for rental during regular hours of operation and reservations may not be made more than four (4) months before the event. Persons interested in doing so should contact the Operations Manager regarding the anticipated date and time of the event to determine availability. Please note that all the facilities may be unavailable for private events on holidays.

(1) **Patrons Only.** Unless otherwise directed by the District, only Patrons may reserve the portions of the Amenities for parties and events.

(2) **Available Rentals.** Only Clubhouse Room 1, Clubhouse Room 2, and BBQ grill are available for rental.

(3) **Reservations.** Rental reservations require an application form to be filled out in person with District Staff. They may not be made more than four (4) months prior to the event. Patrons interested in rental of the Amenities must contact District Staff in order to determine availability of the Amenities for any particular reservation. All of the District policies remain in force during parties and events. Patrons renting the Amenities available for rental are responsible for ensuring that all Guests and attendees adhere to the District's policies.

(4) **Application and Agreement.** Patrons must submit a completed Rental Application, a copy of which is attached hereto as **Exhibit F**, to the Operations Manager no later than seven (7) days prior to the requested event indicating the date of the event, the hours when the event will be held, a description of the event, the number of attendees that will be attending, and whether food will be served. The Operations Manager, or her/his designee, will review Rental Applications on a case-by-case basis and has the authority to reasonably deny a request. Denial of a request may be appealed to the District's Board of Supervisors for consideration. Each Patron renting the Amenities must sign and execute a Rental Agreement acceptable to the District and all documentation required therein must be received by the Amenity Manager no less than five (5) days prior to the date of event. Regardless of whether the Rental Agreement is executed, the Patron is bound by the Rental Agreement, which is incorporated herein by this reference.

(a) **BBQ Grill.** The BBQ Grill may be rented out for non-exclusive use for a four (4) hour time period. Applications for rental of the BBQ Grill must be made at least two (2) days before the date requested.

(5) **Payment and Registration.** At the time the Rental Application is approved, payment for the deposit and payment for the rental fee, if applicable, both made out to "Meadow Pointe II Community Development District," if applicable, must be delivered to the Operations Manager, along with completed paperwork and insurances, if necessary.

(6) **Rates and Deposits.** The rental rates and deposits for use of the Amenities are as set forth in the District's Fee Schedule. To receive the full refund of the deposit within thirty (30) days after the event, the renter must:

(a) Remove all garbage, place in dumpster and replace garbage liners;

(b) Take down all decorations or event displays; and

(c) Otherwise clean the rented Amenities and restore them to their pre-rented condition, and to the satisfaction of the District.

The District may retain all or part of any deposit if the District determines, in its sole discretion, that it is necessary to repair any damages (including any clean-up costs) arising from the rental.

(7) **Duration of Event.** Unless otherwise authorized by the District, each rental shall be for a minimum of two (2) hours but no more than four (4) hours. If the event lasts longer than four (4) hours, the deposit is forfeited. The rental time period is inclusive of set-up, take down, and clean-up time.

(8) **Available Hours.** The Amenities available for rental may be rented for parties and events during normal operating hours. All parties and events, including clean-up, at the clubhouse must conclude by the end of the reserved time.

(9) **Capacity.** The clubhouse capacity limit (Room 1 is 25 persons, Room 2 is 25 persons, entire clubhouse is 50 total persons) shall not be exceeded at any time for a party or event.

(10) **Noise.** The volume of live or recorded music must not violate applicable Pasco County noise ordinances, or unreasonably interfere with residents' enjoyment of their homes.

(11) **Insurance.** Additional liability insurance coverage will be required for all events that the District determines in its sole discretion should require additional liability insurance. The District and its supervisors, staff, and consultants/contractors are to be named on these policies as an additional insured party.

(12) **Cancellation.** If the individual renting one or more of the Amenities wishes to cancel a reservation, the cancellation must be communicated to the Amenity Manager in writing no later than forty-eight (48) hours prior to the scheduled event to receive 100% of the rental fee and deposit. If the event is cancelled less than forty-eight (48) hours prior to the event, 100% of the security deposit and 0% of the rental fee will be returned.

LAKES AND PONDS POLICIES

Lakes and ponds ("Lakes") within the District primarily function as retention ponds to facilitate the District's system for treatment of stormwater runoff and overflow. As a result, contaminants may be present in the water. These policies are intended to limit contact with such contaminants and ensure continued operations of the Lakes while allowing limited recreational use.

(1) **Users.** Users of District Lakes shall not engage in any conduct or omission that violates any ordinance, resolution, law, permit requirement or regulations of any governmental entity relating to the District Lakes.

(2) **Swimming.** Wading and swimming in District Lakes are prohibited.

(3) **Boating.** Boating (motorized and non-motorized), paddleboarding, and other recreational water activities are prohibited in District Lakes.

(4) **Fishing.** Fishing is only authorized at the District Lake located on the east side of Mansfield Blvd., across from Anand Vihar. Fishing is prohibited in all other District Lakes.

(a) Patrons, fifteen (15) years of age and older, are permitted to fish in the designated Lake. Patrons aged fifteen (15) to seventeen (17) years of age must be supervised by a patron who is eighteen (18) years of age or older.

(b) Patrons are responsible to obtain any permits or licenses required under Florida law to legally fish

(c) Spear fishing or the use of spear guns, bows and arrows, and firearms are not permitted. Cast netting is also prohibited.

(d) Removal of hooks and lures from fish shall be performed in a manner that gives the fish the best chance of survival.

(e) The use of traps is prohibited.

(f) In the event where wildlife other than a fish is caught by hook or lure, the line(s) should be cut at a safe distance to avoid possible bodily injury or harm.

(g) Fish may not be moved from one Lake to another. Patrons are not permitted to introduce fish or wildlife into any Lake.

(h) All trash and debris must be disposed of in the appropriate receptacle.

(i) Patron owners who own property on or adjacent to a Lake are permitted to use their own property and the adjacent easement areas to the Lake edge for fishing purposes. Owners are not allowed to use the easement area that falls outside these parameters.

(5) **Parking.** Parking along the county or District right-of-way or on any grassed area neat the Lakes is prohibited.

(6) **Pets.** Pets are not allowed in District Lakes.

(7) **Vegetation.** Owners of property abutting the District Lakes shall take such actions as may be necessary to remove underbrush, weeds or unsightly growth from the Owner's property that detract from the overall beauty and safety of the property. Further, all Owners shall not make improvements on private property that negatively affect the Lakes, including causing erosion or impairments to the Lakes as a stormwater system.

(8) **Structures.** No docks or other structures, whether permanent or temporary, shall be constructed and placed in or around the District Lakes or other District stormwater management facilities unless properly permitted and approved by the District and other applicable governmental agencies.

(9) **Pipes.** No pipes, pumps or other devices used for irrigation, or the withdrawal of water shall be placed in or around the District Lakes, except by the District.

(10) **Littering.** No foreign materials may be disposed of in the District Lakes, including, but not limited to tree branches, paint, cement, oils, soap suds, building materials, chemicals, fertilizers, or any other material that is not naturally occurring or which may be detrimental to the Lake environment.

(11) **Easements.** Easements through resident backyards along the community's stormwater management system are for maintenance purposes only and are not general grants for access for fishing or any other recreational purpose. Access to residents' backyards via these maintenance easements is prohibited. Unless individual property owners explicitly grant permission for others to access their backyards, entering their private property can be considered trespassing. Please be considerate of the privacy rights of other residents.

(12) **Wildlife**. Beware of wildlife, water moccasins and other snakes, alligators, snapping turtles, birds and other wildlife which may pose a threat to your safety are commonly found in stormwater management facilities in Florida. Wildlife may not be fed. Wildlife may neither be removed from nor released into the District Lakes; notwithstanding the foregoing, nuisance alligators posing a threat to the health, safety and welfare may be removed by a properly permitted and licensed nuisance alligator trapper, in accordance with all applicable state and local laws, rules, ordinances and policies including but not limited to rules promulgated by the Florida Fish and Wildlife Conservation Commission ("FWC"). Anyone concerned about an alligator is encouraged to call FWC's toll-free Nuisance Alligator Hotline at 866-FWC-GATOR (866-392-4286).

(13) **Hazards.** Any hazardous conditions concerning the District Lakes must immediately be reported to the Operations Manager and the proper authorities.

NATURAL BUFFER/CONSERVATION AREAS POLICIES

The following policy statement is intended to be consistent with the policies of other governments including Pasco County and Southwest Florida Water Management District (SWFWMD) as it regards their natural, conservation tree protection and wetland conservation/preservation areas:

(1) **Natural Areas.** Certain natural areas are not intended to be maintained, and maintenance activities may be restricted by applicable permits and regulations. These areas are to be left untouched to allow for nature to take its normal course. Vegetation that dies including, but not limited to trees, are left to fulfill their role in nature's process.

(2) **Unauthorized Clearing.** Should a property owner remove, cut back or damage District property in natural areas, except as specifically authorized by this policy, they will be subject to reimbursement to the District for all costs associated with restoring the area in accordance with District, Pasco County, Southwest Florida Water Management District (SWFWMD) and any other state regulatory agency standards and regulations.

(3) **Threatening Trees.** Trees within or immediately adjacent to natural areas that have died and appear to pose a threat of falling and damaging an abutting property owner's property may be addressed as follows:

(a) The owner of the abutting property must initially contact the District. The District will send a representative to confirm that the tree in question is located on District property. Once confirmed, the District will send an arborist to determine whether the tree poses a hazard. If so, and at its discretion, the District will remedy the situation by removing the tree or a portion thereof.

(b) If it is determined that the tree does not pose a hazard, the property owner may elect to cut or remove the tree at their own expense. Such abutting property owner must secure permission from the District and shall then be responsible for any needed permitting or review by Pasco County and SWFWMD. The goal of permitted trimming and/or removal, where warranted, is to minimize disturbance to these areas.

(4) **Fallen Trees.** If a tree does fall onto another's property, that property owner may cut back or limb the tree as necessary to their property line. The rest of the tree is to be left as is.

(5) **Encroaching Vegetation.** Property owners may trim back any vegetation that encroaches over their property line, but only up to their property line.

(6) **Property Owner Encroachments.** No one can encroach into the natural areas or other District property for any reason, from maintenance to placement of personal property of any kind. Should a property owner encroach onto District property, they will be asked to remove any items they have placed on the property and may be subject to further legal action.

(7) **No Trespassing.** There is no trespassing allowed in any designated wetland conservation and/or mitigation areas located on District property. Trespassers will be reported to the local authorities.

USE AT OWN RISK; INDEMNIFICATION

Any Patron, Guest, or other person who participates in the Activities (as defined below), shall do so at his or her own risk, and said Patron, Guest or other person and any of his or her Guests or invitees and any members of his or her Household shall indemnify, defend, release, hold harmless and forever discharge the District and its present, former and future supervisors, staff, officers, employees, representatives, agents and contractors of each (together, "Indemnitees"), for any and all liability, claims, lawsuits, actions, suits or demands, whether known or unknown, in law or equity, by any individual of any age, or any

corporation or other entity, for any and all loss, injury, damage, theft, real or personal property damage, expenses (including attorneys' fees, paralegal fees, costs and other expenses for investigation and defense and in connection with, among other proceedings, alternative dispute resolution, mediation, trial court and appellate proceedings), and harm of any kind or nature arising out of or in connection with his or her participation in the Activities, regardless of determination of who may be wholly or partially at fault.

Should any Patron, Guest, or other person bring suit against the Indemnitees in connection with the Activities or relating in any way to the Amenities, and fail to obtain judgment therein against the Indemnitees, said Patron, Guest, or other person shall be liable to the District for all attorneys' fees, paralegal fees, costs and other expenses for investigation and defense and in connection with, among other proceedings, alternative dispute resolution, mediation, trial court, and appellate proceedings.

The waiver of liability contained herein does not apply to any grossly negligent act by the Indemnitees.

For purposes of this section, the term "Activities" means the use of or acceptance of the use of the Amenities, or engagement in any contest, game, function, exercise, competition, sport, event or other activity operated, organized, arranged or sponsored by the District, its contractors or third parties authorized by the District, including any use of District property or the Amenities whatsoever.

SOVEREIGN IMMUNITY

Nothing herein shall constitute or be construed as a waiver of the District's sovereign immunity or limited waiver of liability contained in Section 768.28, F.S., or other statutes or law.

SEVERABILITY

The invalidity or unenforceability of any one or more provisions of these Policies shall not affect the validity or enforceability of the remaining provisions, or any part of the Policies not held to be invalid or unenforceable.

AMENDMENTS AND WAIVERS

The Board in its sole discretion may amend these Amenity Policies from time to time provided that the Suspension and Termination of Access Rule and all rates, fees and charges will only be permanently changed during a public hearing and consistent with Chapter 120, Florida Statutes. The Amenity Policies may be changed by vote or consensus of the Board at a public meeting but does not require a public hearing. The Board by vote at a public meeting or the District Manager may elect in its/their sole discretion at any time to grant waivers to any of the provisions of these Amenity Policies, provided however that the Board is informed within a reasonable time of any such waivers.

Exhibit A: Amenity Rates
Exhibit B: Amenity Access Registration Form
Exhibit C: Assignment of Amenity Rights and Privileges
Exhibit D: Address/Identification Confidentiality Request From Public Records Disclosure
Exhibit E: Fitness Center Waiver
Exhibit F: Rental Application
Exhibit G: Disciplinary Rule - Suspension and Termination of Privileges

EXHIBIT A
AMENITY RATES

TYPE	RATE
Gym Access (one time)	$11.00
Replace an ID Card	$20.00 for lost or stolen cards; Free for replacements after 5 (five) years
Gate Remote	$30.00
Pedestrian Gate Key	$5.00
Paint for Mail Box (1 tubs)	$4.00
Paint for Mail Box (2 tubs)	$7.00
BBQ Grill Deposit	$100.00
Meadow Pointe II Resident Room Rental Reservations	Security Deposit - $100.00
Non-Resident Annual Access and User Fee	The total of the highest annual combined debt service and operations and maintenance assessment levied on a residential property owner within the District plus 10% FY 25/26 rate: **$2,021.14**
Meadow Pointe I, III and IV Non- Resident Room Rentals	Rental Fee - $500.00 Security Deposit - $100.00
Returned Check/Insufficient Funds Fee	NSF Fee, service charge, and original amount of check, and any associated legal and collection costs
Administrative Reimbursement	Up to $500.00, and any associated legal and collection costs
Property Damage Reimbursement	Actual cost of cleaning, repairing and/or replacing the property, and any associated legal and collection costs

*Any electronic payments remitted to the District may require payment of additional associated processing fees.